

24CV05331 Juan Gutierrez vs JM Roofing Company Inc et al

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-06-22

Motion: Motion Summary Judgment (2)

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Tentative Ruling: Juan Gutierrez vs JM Roofing Company Inc et al

Case Number

24CV05331

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 06/22/2026 - 10:00

Nature of Proceedings

Motion Summary Judgment (2)

Tentative Ruling

Juan Gutierrez v. JM Roofing Company, Inc., et al.

Case No. 24CV05331

Hearing Date: June 22, 2026

HEARING: 1. Motion of Defendant Archdiocese of Los Angeles Risk Management Corporation for Summary Judgment

2. Motion of Defendant Archdiocese of Los Angeles Funeral and Mortuary Services Corporation for Summary Judgment

ATTORNEYS: For Plaintiff Juan Gutierrez.: Raymond Ghermezian

For Defendants Our Lady of Sorrows Roman Catholic Church, Archdiocese of Los Angeles Education and Welfare Corporation, Archdiocese of Los Angeles Funeral and Mortuary Services Corporation, and Archdiocese of Los Angeles Risk Management Corporation: Fred Grannis

For Defendant JM Roofing Company Inc. dba Action Roofing: Thomas Friedman

TENTATIVE RULING:

The motions of Defendants Archdiocese of Los Angeles Risk Management Corporation and Archdiocese of Los Angeles Funeral and Mortuary Services Corporation for summary judgment are granted.

Background:

This action was commenced on September 25, 2024, by the filing of the Judicial Council form complaint by plaintiff Juan Gutierrez against defendants JM Roofing Company, Inc. dba Action Roofing ("JM Roofing"), Our Lady of Sorrows Roman Catholic Church, Archdiocese of Los Angeles Education and Welfare Corporation ("ADLAEWC"), Archdiocese of Los Angeles Funeral and Mortuary Services Corporation ("ADLAFMSC"), and Archdiocese of Los Angeles Risk Management Corporation ("ADLARMC") (collectively "the Church defendants") for General Negligence and Premises Liability.

The complaint alleges that on October 19, 2022, plaintiff was acting within the course and scope of his employment with the Church and was in the process of installing a water pump at Our Lady of Sorrows Roman Catholic Church when a Doe defendant negligently set up a ladder at an unsafe proximity to plaintiff and dropped, or caused to fall, a large heavy object which struck plaintiff on the head causing him injuries.

JM Roofing answered the complaint on December 12, 2024, with a general denial and 20 affirmative defenses.

The Church defendants answered the complaint on December 27, 2024, with a general denial and 14 affirmative defenses.

ADLARMC and ADLAFMSC now move for summary judgment on the grounds that neither entity owns or controls the premises where the incident occurred and that they did not owe a duty to plaintiff. The motions are in nearly all respects identical so they will be addressed concurrently.

Plaintiff was properly served with the motions but has not filed opposition or any other responses to the motions.

Analysis:

Standard on Summary Judgment

A defendant's motion for summary judgment asks the court to determine that the entire action has no merit, and to terminate the action without the necessity of a trial. (Code Civ. Proc., § 437c, subd. (a).) The procedure enables the court to look behind the pleadings to determine whether the party against whom the motion is directed has evidence to back up the claims. The court must determine from the evidence presented that there is no triable issue as to any material fact, and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).)

"[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) There is no obligation on the opposing party to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element necessary to sustain an adjudication in his favor. (Consumer Cause, Inc. v. Smilecare (2001) 91 Cal.App.4th 454, 468.) "[W]e liberally construe plaintiff's evidentiary submissions and strictly scrutinize defendant's own evidence, in order to resolve any evidentiary doubts or ambiguities in plaintiff's favor." (Johnson v. American Standard, Inc. (2008) 43 Cal.4th 56, 64.)

"A defendant . . . has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant . . . has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(2).)

In resolving the motion, the court may not weigh the evidence. (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 840.) Rather, the role of the trial court in resolving a summary judgment motion is to determine whether issues of fact exist, not to decide the merits of the issues. (Molko v. Holy Spirit Assn. (1988) 46 Cal.3d 1092, 1107.) A triable issue of material fact exists only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (Aguilar v. Atlantic Richfield, supra, 25 Cal.4th at p. 850.) Any doubts as to the propriety of granting the motion should be resolved in favor of the party opposing the motion. (Molko v. Holy Spirit Assn., supra, 46 Cal.3d at p. 1107.)

Role of Pleadings

"The pleadings play a key role in a summary judgment motion." (Hutton v. Fidelity National Title Co. (2013) 213 Cal.App.4th 486, 493 (Hutton).) "The materiality of a disputed fact is measured by the pleadings [citations], which 'set the boundaries of the issues to be resolved at summary judgment.' [Citations.]" (Conroy v. Regents of University of California (2009) 45 Cal.4th 1244, 1250.) "Accordingly, the burden of a defendant moving for summary judgment only requires that he or she negate plaintiff's theories of liability as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings. [Citations.]" (Hutton, supra, 213 Cal.App.4th at p. 493.)

As relevant to the present motion, plaintiff's causes of action against ADLARMC and ADLAFMSC are: (1) negligence and (2) premises liability. The third cause of action, for negligent hiring, supervision, or retention, is not asserted against either ADLARMC or ADLAFMSC.

Separate Statement

"Code of Civil Procedure section 437c, subdivision (b)(1), requires each motion for summary judgment to be accompanied by a separate statement " 'setting forth plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence.' " California Rules of Court, rule 3.1350(d)(2)4 states: " 'The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion.' " Under the Rules of Court, " 'Material facts' " are facts that relate to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion and that could make a difference in the disposition of the motion.' " (Rule 3.1350(a)(2).)" (Beltran v. Hard Rock Hotel Licensing, Inc. (2023) 97 Cal.App.5th 865, 874-875.)

"The point of the separate statement is not to craft a narrative, but to be a concise list of the material facts and the evidence that supports them. " 'The separate statement serves two important functions in a summary judgment proceeding: It notifies the parties which material facts are at issue, and it provides a convenient and expeditious vehicle permitting the trial court to hone in on the truly disputed facts.' " [Citation.]" (Beltran v. Hard Rock Hotel Licensing, Inc., supra, 97 Cal.App.5th at page 875.)

"The duty to comply with the law regarding separate statements applies to both sides of a motion for summary judgment or adjudication. The opposing party's responses to the separate statement must be in good faith, responsive, and material. Responses should directly address the fact stated, and if that fact is not in dispute, the opposing party must so admit. It is completely unhelpful to evade the stated fact in an attempt to create a dispute where none exists." (Beltran v. Hard Rock Hotel Licensing, Inc., supra, 97 Cal.App.5th at page 875.)

"Separate statements serve a laudable purpose. As explained in Weil & Brown, California Practice Guide (The Rutter Group 1996) Civil Procedure Before Trial, paragraph 10:94.1, pp. 10–31, 10–32, these documents are 'intended to permit the judge to determine quickly whether the motion is supported by sufficient undisputed facts. If the opposing statement disputes an essential fact alleged in support of the motion, the judge merely has to review the evidence cited in support of that fact. This saves the judge from having to review all the evidentiary materials filed in support of and in opposition to the motion.' " (Kulesa v. Castleberry (1996) 47 Cal.App.4th 103, 113.)

ADLARMC and ADLAFMSC have set forth 18 facts that they contend are undisputed. The facts are, with one small exception, identical for each of the moving parties. All of the facts are supported by admissible evidence. The facts include:

"On October 19, 2022, Plaintiff Juan Gutierrez was injured at Our Lady of Sorrows Roman Catholic Church, located at 21 E. Sola Street in Santa Barbara."

"Plaintiff was an employee of Our Lady of Sorrows Roman Catholic Church and, when he was injured, he was working in the course and scope of his employment."

"Plaintiff has made a claim for worker's compensation benefits and has received worker's compensation benefits for his injuries."

"Plaintiff's injury occurred when an employee of roofing contractor, Defendant JM Roofing Company, Inc., dba Action Roofing, carelessly dropped a tool, which fell and struck Plaintiff in the head."

"Defendant JM Roofing was hired by Our Lady of Sorrows to perform roofing work to its Church, and the subject incident occurred in the course of the roofing work being performed by JM Roofing at the subject premises."

"The Complaint filed by Plaintiff Juan Gutierrez ('Plaintiff') on September 25, 2024, alleges causes of action against Defendant [ADLARMC or ADLAFMSC] for negligence and premises liability."

"Plaintiff's negligence and premises liability causes of action are based on the same operative facts and, although separately pled, each cause of action is indistinguishable from the other."

"Plaintiff alleges without any evidentiary basis that [ADLARMC or ADLAFMSC] 'owned, managed, operated, controlled, inspected, monitored, maintained, cleaned, repaired, guarded, supervised, renovated, decorated, designed displayed and/or secured' the subject premises."

"Plaintiff further alleges that an unknown defendant, fictitiously identified as 'JOHN DOE' created a dangerous condition on the premises by 'negligently and carelessly set[ting] up a ladder at an unsafe proximity to Plaintiff and thereafter acted or failed to act in a reasonable manner by dripping or otherwise causing the fall of a large and heavy object.' "

"Plaintiff thereafter alleges without any evidentiary basis that [ADLARMC or ADLAFMSC] knew or should have known of the [] alleged dangerous condition created by 'JOHN DOE' and either corrected the condition or warned Plaintiff of its existence."

"[ADLARMC or ADLAFMSC] did not own, possess, occupy, or control the property where the alleged incident occurred, so it did not owe any duty to correct the alleged dangerous condition or warn of its existence."

"[ADLARMC or ADLAFMSC] did not play any role in the pastoral or civil affairs of Our Lady of Sorrows Roman Catholic Church. It has never been involved in the management, oversight, administration, operation, maintenance, or repair of the subject premises."

"[ADLARMC or ADLAFMSC] has never had any role in the hiring, retention, supervision, training, direction, oversight, or termination of employees of Our Lady of Sorrow Roman Catholic Church."

"[ADLARMC or ADLAFMSC] has never had any relationship whatsoever with Plaintiff, including any employer-employee relationship."

"[ADLARMC or ADLAFMSC] was not involved in hiring JM Roofing to perform roofing repairs to Our Lady of Sorrow Roman Catholic Church, nor did it play any role in overseeing, supervising, or directing any work or activities by Action Roofing or its employees."

"On October 19, 2022, when Plaintiff's incident occurred, no agent or representative of ADLAFMSC was present at the premises of Our Lady of Sorrows Roman Catholic Church." [For ADLAFMSC]

"Archdiocese of Los Angeles Risk Management Corporation does not have any employees. Therefore, on October 19, 2022, when Plaintiff's incident occurred, there is no possibility any employee of Archdiocese of Los Angeles Risk Management Corporation was present at the premises of Our Lady of Sorrows Roman Catholic Church." [For ADLARMC]

"The worker who dropped the caulking gun onto Plaintiff was an employee of JM Roofing."

"[ADLARMC or ADLAFMSC] served Plaintiff with written discovery, including form interrogatories, special interrogatories, and requests for admission, calling for Plaintiff to disclose the evidentiary basis for his causes of action against [ADLARMC or ADLAFMSC]. Plaintiff's responses merely restate the conclusory allegations of his complaint, without identifying any supporting evidence."

"The opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed. The statement also shall set forth plainly and concisely any other material facts the opposing party contends are disputed. Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence. Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion." (Code Civ. Proc., § 437c, subd. (b)(3).)

As noted above, plaintiff has not filed opposition to the motions. As plaintiff did not comply with Code of Civil Procedure section 437c, subdivision (b)(3), the facts will be deemed undisputed.

"The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury. [Citations.] Premises liability " ' "is grounded in the possession of the premises and the attendant right to control and manage the premises" ' "; accordingly, " ' "mere possession with its attendant right to control conditions on the premises is a sufficient basis for the imposition of an affirmative duty to act." ' ' " [Citations.] But the duty

arising from possession and control of property is adherence to the same standard of care that applies in negligence cases. [Citation.]” (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158.)

“A defendant cannot be held liable for the defective or dangerous condition of property which it did not own, possess, or control. Where the absence of ownership, possession, or control has been unequivocally established, summary judgment is proper.” (Isaacs v. Huntington Memorial Hospital (1985) 38 Cal.3d 112.)

By way of the undisputed material facts, ADLARMC and ADLAFMSC have established that they had no possession of the premises where the incident occurred, and no attendant right to control the conditions on the premises. The undisputed facts show that ADLARMC and ADLAFMSC have no connection to any of the events that are the basis of plaintiff's action.

Neither ADLARMC or ADLAFMSC breached a duty to plaintiff because they owed no duty to plaintiff. Summary judgment will be granted in favor of ADLARMC and ADLAFMSC.

Judges

Judge Colleen Sterne

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